

city inspector told the contractor to remove the check valves and replace them with a straight pipe. (NOMA First Amended Complaint, ¶ 20, Rows Complaint, ¶ 20.) Interestingly, NOMA's original complaint alleged that Richmond contended that the "ASSOCIATION'S repair contractor had broken the damaged check valves." (NOMA Original Complaint, ¶ 21.)

The basic problem with Roto-Rooter's demurrer is that it tacitly assumes that the City, in cross-complaining, is somehow limited to the allegations of the original complaint against the City, so that its cross-complaint cannot add any other allegations or theories. Roto-Rooter cites no authority for such a limitation, and a little easy analysis quickly disproves it. Suppose an absentee property owner hires a contractor to do work on the property, with an indemnification provision in the contract. Contractor's work causes damage to the home of a neighbor, who sues the property owner, alleging only the owner's fault and not mentioning the contractor. Surely the property owner would be entitled to cross-complain against the contractor, seeking indemnification against the neighbor's suit. But under Roto-Rooter's theory in this demurrer, the neighbor's omission to sue the contractor (or to allege the contractor's fault) would prevent the property owner from seeking the indemnification he contracted for.

In examining the language of the indemnity provision (Cross-Complaint, ¶ 61) and the allegations from the complaints in this case (Amended Cross-Complaint, NOMA First Amended Complaint, and Rows Complaint), there is reason to believe that Roto-Rooter has potential liability based on the allegations and the Court overrules the instant demurer of cross-defendant Roto-Rooter. The underlying complaint being brought only against the City may show that the plaintiffs see the City as the sole wrongdoer; but hardly binds the City to agree to that proposition and refrain from pointing a cross-complaint finger at the party the City considers to be at fault.

4. 9:00 AM CASE NUMBER: C24-00779

CASE NAME: MOORE OKEH VS. HARDEEP SINGH

***HEARING ON MOTION IN RE: SET ASIDE ORDER COMPELLING ARBITRATION**

FILED BY: OKEH, MOORE N.

TENTATIVE RULING:

Before the Court is Plaintiffs' Motion to Set Aside Order Compelling Arbitration. The motion is **denied**.

Procedural Background

Plaintiffs filed the initial complaint in this matter on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association filed a motion to compel arbitration. The hearing for the motion was set for March 21, 2025. As such, any opposition would be due on or before March 10, 2025.

In late February, the parties submitted a joint stipulation to continue the hearing date until April 21, 2025 "or as soon as the Court is available thereafter." The Court signed the stipulation on March 3 resetting the hearing date for May 2, 2025. The stipulation was entered on the docket on March 10, 2025.

Plaintiff never filed an opposition to the motion to compel arbitration. Accordingly, on May 1, 2025, the Court posted the tentative ruling indicating that the "unopposed motion to compel arbitration is granted." Plaintiff did not contest the tentative ruling. As such, the Court issued a minute order on

May 2 confirming the tentative ruling as its final order.

Over four months later, on September 15, 2025, Plaintiffs filed the instant motion to set aside the order compelling arbitration.

Standard

The Notice of Motion indicates that Plaintiffs make this motion pursuant to Code of Civil Procedure section 473 (b). “The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

Plaintiffs indicate in their moving papers that they are moving under the discretionary provision by only citing that portion of section 473(b) and by specifically noting that such a request “is discretionary with the trial court.” (Motion at 3:5-10.)

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.)

“Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney’s neglect must show that the neglect was *excusable*.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.)

Analysis

Accompanying Opposition

As noted by Defendants, to satisfy the requirements for relief under section 473(b), the motion “**shall be** accompanied by a copy of the answer or other pleading proposed to be filed therein, **otherwise the application shall not be granted...**” (Cal. Code Civ. Proc. § 473 (b) emphasis added.)

Even if a motion to set aside is timely, it is “nonetheless properly denied [if] it was unaccompanied by a proposed responsive pleading.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 63.) The purpose of needing to file a proposed response “is to compel the delinquent party to demonstrate his or her good faith and readiness to proceed on the merits,” and to ensure that ‘courts do not become a sanctuary for chronic procrastination and irresponsibility on the part of either litigants or their attorneys.’” (*Ibid.* citations omitted.)

While it is recommended that the proposed pleadings accompany the motion, “[t]he objectives of the ‘accompanied by’ requirement, i.e., a screening determination that the relief is not sought simply to

delay the proceedings, are satisfied by the filing of a proposed answer at any time before the hearing.” (*Hu v. Fang* (2002) 104 Cal.App.4th 61, 65, quoting *County of Stanislaus v. Johnson* (1996) 43 Cal.App.4th 832, 838.)

Plaintiffs’ reply papers were due on or before January 9. As of the drafting of this tentative ruling, well beyond that date, Plaintiffs have not filed any reply papers and have failed to file any proposed response to the motion to compel arbitration. On that basis alone, their motion must be denied.

Timeliness

An application for relief under section 473(b) discretionary relief provisions “shall be made *within a reasonable time*, in no case exceeding six months, after the ... order or proceeding was taken.” (Cal. Code Civ. Proc. § 473 (b) emphasis added.) “Thus, a ‘moving party ... must show *diligence* in making the motion after discovery of the default.’” (*Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1145.) “What constitutes ‘a reasonable time in any case depends on the circumstances of that particular case.’” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 33 quoting *Martin v. Taylor* (1968) 267 Cal.App.2d 112, 114.)

Plaintiffs have failed to show any diligence in seeking to set aside the order compelling arbitration. The Parties submitted a stipulation requesting that the hearing be moved to April 21 ““or as soon as the Court is available thereafter.” To begin with, April 21 is a Monday, and the parties should have been aware that the Court held law and motion hearings on Fridays. As such, they should not have expected that date to be set. Even so, the parties should have been on alert to see what date the Court set after they submitted their stipulation.

On February 10, the Court granted the stipulation and entered the order setting the new hearing date on May 2. With that new hearing date, oppositions would be due on or before April 21, 2025. Thus, Plaintiffs had over two months to receive the order and prepare their opposition. Not only did Plaintiffs fail to file an opposition, but they also failed to contest the tentative ruling that was posted on May 1, 2025. As such, the order granting the motion to compel was entered on May 2.

The Court held a CMC on May 8, at which Plaintiffs’ counsel appeared. This is almost three weeks *after* the proposed hearing date set by the parties. Despite this, no mention is made of the motion to compel arbitration. Thereafter, U.S. Bank’s counsel sent emails to Plaintiffs’ counsel asking if Plaintiffs were going to file an arbitration – dated June 2, 20, and July 20. (Vanderfin Decl. ¶ 2, Ex. A.) It does not appear that Plaintiffs’ counsel responded to any of those inquiries. Instead, Plaintiffs waited over eight more weeks to file the instant motion to set aside.

In total, Plaintiffs waited almost four and a half months (136 days) to move to set aside the order compelling arbitration. While appellate courts have routinely found that there is no abuse of discretion in granting relief under section 473(b) in delays of 7-10 weeks, a “delay is unreasonable as a matter of law [] when it exceeds three months and there is no evidence to explain the delay.” (*Minick*, 3 Cal.App.5th at 34.)

Plaintiffs provide no explanation as to why they waited so long to file the instant motion. They failed to show that the motion was made in a “reasonable time” and that they acted diligently. This is another reason for denying the motion.

Excusable Conduct

Plaintiff must show that the conduct was “excusable because the negligence of the attorney is imputed to his client and may not be offered by the latter as a basis for relief.” (*Generale Bank Nederland v. Eyes of the Beholder Ltd.* (1998) 61 Cal.App.4th 1348, 1399.) To assess whether conduct is excusable the court must inquire into whether “‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1112, quoting *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276.) Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is, therefore, not excusable. (*Id.* at 1112.) To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682.)

While it is true that the “statute’s ‘broad remedial provisions’ are to be ‘liberally applied to carry out the policy of permitted trial on the merits,’ the party seeking relief “bears the burden of proof in establishing a right to relief.” (*Hopkins v. Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410 citations omitted.) “The burden is a ‘double one: the moving party must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.” (*Ibid.* internal quotations omitted.) The party must identify the specific facts which “demonstrate ‘that due to *some mistake*, either of fact or law, of himself or of his counsel, or through *some inadvertence*, surprise or neglect **which may properly be considered excusable**, the judgment or order from which he seeks relief should be reversed.” (*Ibid.* emphasis added.)

As outlined above, the original hearing date was March 21, 2025. The parties submitted a stipulation to move the hearing to April 21 “or as soon as the Court is available thereafter.” The Court granted the stipulation and entered an order on February 10 setting the new hearing for May 2. Plaintiffs’ counsel contends that he failed to file an opposition because he was unaware of the new hearing date issued by the Court.

Plaintiffs’ counsel maintains that he was ‘confused’ because the stipulation submitted by the parties sought a hearing date of April 21, but the order indicated a hearing date of May 2. He asserts that he did not receive the signed stipulation until after May 2, and as such failed to timely submit an opposition. As noted by Defendants, this explanation does not make sense.

If Plaintiffs’ counsel was unaware that the stipulation had been entered, he should have submitted an opposition by March 10. He did not. He also does not appear to have checked to see if the stipulation was granted or denied. Any reasonable attorney would have checked the docket and/or contacted the Court to determine the status of the stipulation as the deadline to file an opposition neared. If counsel did not receive the signed order until after May 2, he should have acted as if it had not been entered. In other words, a reasonable attorney would have filed an opposition based on the original hearing date.

Even if Plaintiffs’ counsel presumed the stipulation was entered with the date requested, an opposition would have been due before the actual date based on the May 2 hearing date. Despite this, Plaintiffs counsel still did not file an opposition in time for the proposed hearing date. In fact,

they never filed (even to date) any opposition to the motion to compel arbitration.

“Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is, therefore, not excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1112, quoting *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

Plaintiffs’ counsel’s failure to timely file an opposition, failure to determine if the stipulation was granted and, if so, what date the new hearing was set for all fall below the professional standard of care. The “law is clear that attorney conduct falling below the professional standard of care is not excusable.” (*Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 166, 174 citing *Zamora*, 28 Cal.4th at 258.)

The above provides another reason as to why Plaintiffs motions should be denied.

Conclusion

Plaintiffs’ Motion to Defendant’s Motion to Set Aside Order Compelling Arbitration is **denied**.

Finally, the Court must observe that with arbitration having been ordered in early May, compliance with that order should have resulted in arbitration proceedings being commenced by June at the latest. It does not appear that either side has moved to make that happen. Such a failure to proceed with arbitration may form the ground for further relief of some kind, but no such action is taken at this time.

5. 9:00 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: OLI, THALBIR

TENTATIVE RULING:

This case is a dispute between the two partners and owners of a now-failed bar business, with related parties also involved. The case is on calendar for the demurrer and motion to strike filed by plaintiffs/cross-defendants against the cross-complaint of defendant/cross-complainant Sushovan Shahi. No oppositions to the present demurrer and motion to strike have been filed. Instead, cross-complainant Shahi filed a first amended cross-complaint (adding the corporation as a cross-complainant). No answer or response to the amended cross-complaint has been filed yet. Thus, the present demurrer and motion are **moot**, at least for now.

In the meantime, however, defendants have also filed a demurrer and motion to strike against plaintiffs’ original complaint. Those are set for hearing on February 6.

While we haven’t seen a demurrer to the first amended cross-complaint yet, however, it appears likely that one will be filed, and that its substance will overlap strongly with the issues presented by